

		The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. Moving attorney to provide notice.
3.	30-2022-01296297 Atkins vs. TLH Enterprises, LLC	Motion for Leave to Amend The Motion for Leave to Amend brought by Plaintiff Sonia Atkins is DENIED. Plaintiff neglected to attach a proposed pleading, as required by California Rules of Court rule 3.1324. (Cal. Rules of Court rule 3.1324(a)(1); See also <i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal.App.4th 1454, 1469.) The Court notes, however, that both Plaintiffs have submitted Declarations which indicate their desire to remove “John Doe” and the Defendants “Does 1-100” from the Complaint. (§6 of Sonia Atkins Declaration and ¶4-¶6 of Christopher Atkins Declaration.) The Court is inclined to treat this motion and the attached declarations as a written request for dismissal of said defendants made pursuant to Code of Civil Procedure section 581, subdivision (b)(1) and to grant the same. “An action may be dismissed...[w]ith or without prejudice, upon written request of the plaintiff to the clerk, filed with papers in the case, or by oral or written request to the court at any time before the actual commencement of trial, upon payment of the costs, if any.” (Code Civ. Proc., § 581, subd. (b)(1).) “The proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades.” (<i>Sole Energy Co. v. Petrominerals Corp.</i> (2005) 128 Cal.App.4th 187, 193.) “ ‘The nature of a motion is determined by the nature of the relief sought, not by the label attached to it.’ ” (<i>Ibid.</i>) Based on the above, and consistent with Plaintiffs’ request, John Doe and Doe Defendants 1-100 are ORDERED dismissed, without prejudice. Court to give notice.
4.	30-2022-01282583 Arend vs. Coast Community College District	Motion to Compel Compliance with Deposition Subpoena Defendant Coast Community College District’s (“District”) motion to compel Nonparty CalOptima Health (“CalOptima”) to comply with the District’s Deposition Subpoena for Production of Business Records pertaining to CalOptima’s treatment of Plaintiff Veronica Arend is CONTINUED to May 29, 2025 at 1:30 p.m. in Department C34. The Proof of Service filed in connection with CalOptima’s Objection to the Motion to compel Production of Records does not list Moving Party Defendant Coast Community College District (“District”) on the Service List. (See ROA 219.) The District did not file a Reply and instead filed a Notice of Non-Opposition (ROA 223), suggesting that the District was not served with the Objection/Opposition. CalOptima shall serve the District with a copy of the Objection and the accompanying Declaration filed as nos. 219 and 220 in the Register of Actions within 7 days of service of this order. The District may file a reply in accordance with the Code of Civil Procedure. Defendant Coast Community College District to give notice.